

CHAPTER 5 PET SHOPS

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§ 5-01. Scope and applicability.

This Chapter contains rules applicable to pet shops as defined in New York City Administrative Code section 17-371 or successor provision.

§ 5-02. Definitions.

When used in this Chapter, the following terms have the following meanings:

“Animal rescue group” has the same meaning as in section 17-802 of the Administrative Code.

“Animal shelter” has the same meaning as in section 17-802 of the Administrative Code.

“Cat” has the same meaning as in section 161.02 of the Health Code.

“Dog” has the same meaning as in section 161.02 of the Health Code.

“Health Code” means the New York City Health Code.

“Pet shop” has the same meaning as in section 17-371 of the Administrative Code.

“Small animal” has the same meaning as in section 161.02 of the Health Code.

§ 5-03. Prohibition.

No pet shop may display, sell, lease, offer to lease, offer to sell, barter, auction, give away or otherwise transfer ownership of any dog, cat, guinea pig or rabbit.

§ 5-04. Disposition of and restrictions on permits.

(a) *Permit authorizing sale of dogs or cats.* Any permit issued by the Department authorizing the permittee to sell or offer for sale of dogs or cats lapsed by operation of law effective December 15, 2024 and is null and void.

(b) *Permit authorizing the sale of small animals other than dogs and cats.* The holder of a permit issued pursuant to section 161.09 of the Health Code must not sell or offer for sale animals other than small animals authorized by such permit and for which possession is not prohibited by section 161.01 of the Health Code and transfer is not prohibited by section 5-03 of this chapter.

§ 5-05. Adoption promotions with certain non-profits.

(a) A person or entity operating an establishment selling or offering for sale small animals other than dogs, cats, rabbits, and guinea pigs, may allow an animal shelter or non-profit animal

rescue group to use its facilities to offer animals for adoption provided that it satisfies the following requirements:

- (1) Must obtain a copy of either a valid permit issued to the animal shelter by the Commissioner pursuant to section 161.09 of the Health Code, or proof of the animal rescue group's incorporated not-for-profit status.
 - (2) Whenever the animal shelter or animal rescue group is offering animals for adoption at the establishment, the establishment must have on site, and available for inspection upon request, a copy of the animal shelter's permit or animal rescue group's registration with the New York State Department of Agriculture and Markets Registered Rescues and Shelters List, and the animal shelter's or animal rescue group's proof of not-for-profit status, and the animal shelter or animal rescue group's registration of such status and exemption from the definition of 'pet dealer', issued by the New York State Department of Agriculture and Markets pursuant to section 408 of the New York State Agriculture and Markets Law.
- (b) A pet shop is not required to comply with the requirements of sections 5-03 and 5-04 of this Chapter regarding any dog or cat offered for adoption by an animal shelter or animal rescue group using such pet shop's facilities, provided that such pet shop does not have an ownership interest in such animal.

§ 5-06. Enforcement.

(a) *Summons and penalty.*

- (1) Any person or entity found to be displaying, offering for sale, leasing, delivering, bartering, auctioning, giving away or transferring a dog, cat, rabbit or guinea pig in violation of section 5-03 of this Chapter will be issued a summons subject to a penalty of \$500 per day and per animal.
 - (2) Any person or entity found to be in violation of section 5-04(b) of this Chapter shall be issued a summons subject to a penalty of \$500.
- (b) *Seizure.* The Department may seize any dog, cat, rabbit or guinea pig found on premises operated as a pet shop or other entity that is prohibited from selling, leasing, offering to sell or lease, barter, auction or otherwise transfer these animals.
- (c) *Forfeiture.* Any dog, cat, rabbit or guinea pig seized pursuant to this section is subject to forfeiture after notice and hearing unless the Department, in its sole discretion, allows the owner to reclaim the animal. If the Department allows the owner to reclaim the animal, it may impose any terms and conditions to reclamation it deems appropriate.
- (d) *Impoundment and disposition.* The Department may provide for the appropriate disposition of any dog, cat, rabbit or guinea pig seized pursuant to this section. Such disposition may include impoundment at an animal shelter or by an animal rescue group.
- (e) *Expenses.* The Department may impose upon the owner of any animal seized pursuant to this section a fee for the Department's expenses incurred in connection with seizing or impounding such animal.
- (f) *Authorized agents.* Employees or designees of the Department and officers of the NYPD are authorized to enforce the provisions of this Chapter.

(Repeal and Re-enactment added to City Record on 2/17/2026, effective 3/19/2026)